

HOUSE No. 4106

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a farm-to-institution pilot program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>1/15/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>2/18/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/17/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>7/10/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>6/10/2025</i>
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>5/30/2025</i>

HOUSE No. 4106

By Representative Davis of Great Barrington, a petition (accompanied by bill, House, No. 4106) of Leigh Davis and Natalie M. Blais for legislation to establish a farm-to-institution pilot program. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a farm-to-institution pilot program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting, after
2 section 2JJJJJ, the following section:-

3 Section 2KKKKKK. (a) There shall be established and set up on the books of the
4 commonwealth a separate fund known as the Massachusetts Farm-To-Institution Fund,
5 hereinafter referred to as the fund. The purpose of the fund shall be to support the Massachusetts
6 farm-to-institution pilot program established in section 125 of chapter 128. The fund shall be
7 administered by the commissioner. For the purposes of this section, the term “commissioner”
8 shall mean the commissioner of agricultural resources.

9 (b) The fund shall be credited with: (i) revenue from appropriations or other money
10 authorized by the general court and specifically designated to be credited to the fund;

11 (ii) interest earned on money in the fund; (iii) contributions from private sector entities,
12 including non-profits, foundations and other organizations; and (iv) federal grants and other gifts,

grants and donations to support the Massachusetts farm-to-institution pilot program. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(c) The commissioner shall make expenditures from the fund including, but not limited to, the following purposes: (i) grants or reimbursements to institutions participating in the Massachusetts farm-to-institution pilot program to offset the cost of sourcing local food; (ii) technical assistance and grants to eligible local farms to support scaling up production or meeting institutional procurement standards; (iii) landscape analysis and strategic planning; (iv) any infrastructure improvements and capacity-building initiatives; and (v) the implementation and evaluation of the Massachusetts farm-to-institution pilot program.

(d) The commissioner shall pursue any additional funding opportunities including, but not limited to, the following federal programs: (i) USDA Local Food Promotion Program; (ii) USDA Farm to School Grant Program; (iii) USDA Specialty Crop Block Grants; and (iv) USDA Community Food Projects Competitive Grant Program.

(e) The department of agricultural resources shall annually, not later than December 31, report on the activity of the fund to the: (i) chairs of the joint committee on agriculture; (ii) chairs of the house and senate committees on ways and means; and (iii) clerks of the house of representatives and senate.

SECTION 2. Chapter 128 of the General Laws is hereby amended by adding the following section:-

Section 125. (a) For the purposes of this section, the following terms shall, unless the context clearly requires otherwise, have the following meanings:

“Institution”, any public schools, public universities, hospitals, correctional facilities and other state-funded entities.

“Local farm”, a farm located in the commonwealth.

“Program”, the Massachusetts farm-to-institution pilot program.

(b) The department shall establish and administer, in coordination with the executive office of energy and environmental affairs and the department of education, the program with the goal of informing statewide expansion. The program’s objectives shall include: (i) increasing the procurement of locally grown and produced agricultural products by institutions; (ii) supporting small and medium-sized farms within the commonwealth; (iii) providing technical and financial assistance to institutions to facilitate local procurement; and (iv) promoting educational initiatives to increase awareness of local food systems.

(c) The program shall:

(i) conduct a comprehensive landscape analysis of the Berkshire county and gateway city pilot programs’ farm-to-institution value chain, identifying gaps in processing, transportation and storage infrastructure, as well as opportunities for institutional procurement;

(ii) develop a strategic plan to create scalable farm-to-institution models that can be implemented in other regions of the commonwealth;

(iii) learn from existing farm-to-institution models or add to existing scalable farm-to-institution models to be more inclusive of existing programs;

(iv) provide grants, loans and technical assistance to: (A) farmers to help scale up production and access institutional markets; (B) middle-value-chain operators, including

aggregators, processors and distributors to enhance infrastructure and coordination; and (C) institutions, such as schools, hospitals and correctional facilities to build capacity for sourcing and serving locally grown food;

(v) implement a pilot program to test and refine strategies for increasing farm-to-institution sales, with measurable benchmarks for success; and

(vi) establish a regional working group of stakeholders, including farmers, institutional buyers, intermediaries and community organizations, to guide implementation of the program.

(d) The program shall be funded by the Farm-To-Institution Fund established in section 2KKKKKK of chapter 29.

(e) The department shall: (i) develop guidelines for participation by local farms and institutions in the program; (ii) establish a streamlined application process for interested stakeholders in the program; and (iii) provide resources, including training and best practices, to institutional food service providers participating in the program.

(f) There shall be a farm-to-institution advisory committee to guide program development and implementation. The advisory committee shall consist of: (i) the commissioner of the department or their designee, who shall serve as co-chair; (ii) the secretary of the executive office of energy and environmental affairs or their designee, who shall serve as co-chair; (iii) 2 members appointed by the commissioner, 1 of whom shall be from a farm organization in the commonwealth and 1 of whom shall be a local farmer from the commonwealth; (iv) 2 members appointed by the commissioner and the secretary, who shall be from an institution participating in the program; and (v) 1 member appointed by the commissioner and the secretary, who shall be an expert in public health and nutrition.

(g) The program shall prioritize inclusion of small and historically underserved farms, including minority-owned farms. Institutions serving underserved communities shall receive additional support to ensure equitable access to fresh local foods.

(h) The department shall prepare an annual report that shall include: (i) the amount of locally sourced food procured through the program; (ii) economic impacts on participating farms; (iii) feedback from institutions participating in the program and (iv) any recommendations for program improvement and potential statewide expansion of the program. The report shall be submitted, no later than December 31 of each year, to the governor, the chairs of the joint committee on agriculture and the clerks of the house of representatives and senate.

SECTION 3. Section 2KKKKKK of chapter 29 of the General Laws, inserted by section 1, and section 125 of chapter 128 of the General Laws, inserted by section 2, are hereby repealed.

SECTION 4. Section 3 shall take effect 3 years after the effective date of this act.